



File No.: EXP202208517

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: Mr. A.A.A. (hereinafter, the complainant), on July 18, 2022, filed a complaint with the Spanish Agency for Data Protection. The complaint is directed against the TOWN HALL OF OLIVENZA with NIF P0609500D (hereinafter, the respondent), regarding the installation of a video surveillance system located on the facade of the CONVENTO SAN JUAN DE DIOS, PLAZA DE PIZARRO 24, OLIVENZA, BADAJOZ, with indications of a possible violation of the provisions of personal data protection regulations.

The reasons supporting the complaint are as follows:

The complainant states that two video surveillance cameras have been installed on the facade of the old Convento San Juan de Dios in Olivenza, a property that depends on the respondent Town Hall, aimed at the public road, without being properly signposted with the required informative signs indicating the monitored area.

Images of the camera locations are provided.

The documents submitted are:

- Photographic report

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) via electronic notification, was not collected by the responsible party within the availability period, being understood as rejected in accordance with the provisions of Article 43.2 of the LPACAP on 14/08/2022, as stated in the certificate in the file.

Although the notification was validly carried out by electronic means, with the procedure being considered completed in accordance with the provisions of Article 41.5 of the LPACAP, a copy was sent by postal mail for informational purposes, which was duly notified on 25/08/2022. In this notification, the obligation to communicate electronically with the Administration was reminded, and the means of access to such notifications were provided, reiterating that, henceforth, notifications would be made exclusively by electronic means.

No response has been received to this forwarding letter.

THIRD: On October 14, 2022, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

FOURTH: On December 16, 2022, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against the respondent for the alleged infringement of Article 5.1.c) of the GDPR and Article 13 of the GDPR, classified under Article 83.5 of the GDPR.

FIFTH: The aforementioned initiation agreement was notified in accordance with the rules established in the LPACAP, and after the period granted for the submission of allegations had elapsed, it was confirmed that no allegations had been received from the respondent.

Article 64.2.f) of the LPACAP - a provision of which the respondent was informed in the initiation agreement - establishes that if no allegations are made within the stipulated period regarding the content of the initiation agreement, when it contains a precise statement regarding the responsibility attributed, it may be considered a proposal for resolution. In this case, the initiation agreement of the sanctioning file determined the facts that specified the accusation, the infringement of the GDPR attributed to the respondent, and the sanction that could be imposed. Therefore, considering that the respondent has not submitted allegations to the initiation agreement of the file and in accordance with

the provisions of Article 64.2.f) of the LPACAP, the aforementioned initiation agreement is considered in this case as a proposal for resolution.

In view of all that has been acted upon, the Spanish Agency for Data Protection considers the following facts as proven in this procedure,

PROVEN FACTS

FIRST: The complainant states that two video surveillance cameras have been installed on the facade of the old Convento San Juan de Dios in Olivenza, a property that depends on the respondent Town Hall, aimed at the public road, without being properly signposted with the required informative signs indicating the monitored area.

Images of the camera locations are provided.

SECOND: The Spanish Agency for Data Protection has notified the respondent of the Initiation Agreement of this Sanctioning Procedure, without the respondent having submitted allegations or evidence contradicting the reported facts.

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LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

The image is a personal data

The physical image of a person, according to Article 4.1 of the GDPR, is personal data and its protection is therefore subject to this Regulation. Article 4.2 of the GDPR defines the concept of "processing" of personal data.

Images generated by a system of cameras or video cameras are personal data, and their processing is subject to data protection regulations.

It is therefore pertinent to analyze whether the processing of personal data (images of individuals) carried out through the reported video surveillance system complies with the provisions established in the GDPR.

III

Infringement

Article 6.1 of the GDPR establishes the circumstances under which the processing of personal data can be considered lawful.

Regarding processing for video surveillance purposes, Article 22 of the LOPDGDD establishes that natural or legal persons, public or private, may carry out the processing of images through camera or video camera systems for the purpose of ensuring the safety of individuals and property, as well as their facilities.

Article 12.1 of the GDPR indicates that anyone who carries out the processing of personal data, such as capturing images through a video surveillance system, must provide the data subjects with the information indicated in Articles 13 and 14 of the GDPR.

In order for the information duty provided for in Article 12 of the GDPR to be fulfilled concisely and understandably for the affected party, the aforementioned Article 22 of the LOPDGDD provides for a "layered information" system in relation to video surveillance.

In this regard, the first layer must refer, at a minimum, to the existence of the processing (video surveillance), the identity of the controller, the possibility of exercising the rights provided for in Articles

15 to 22 of the GDPR, and where to obtain more information about the processing of personal data. The information in the second layer must be available in a place easily accessible to the affected party, whether it be an information sheet at a reception, cashier, etc., placed in a publicly visible space or on a website, and must refer to the remaining elements of Article 13 of the GDPR.

It is not necessary to specify the precise location of the video surveillance equipment.

This information duty will be considered fulfilled by placing an informative device in a sufficiently visible location, and at a minimum, at the entrances to the monitored areas, whether interior or exterior. In the event that the monitored space has several entrances, such a distinctive sign indicating a monitored area must be placed at each of them.

This information must be provided in advance - considering Recital 39 of the GDPR. The objective is to make the context of the surveillance clear.

The processing of personal data is subject to the other principles of processing contained in Article 5 of the GDPR. We will highlight the principle of data minimization contained in Article 5.1.c) of the GDPR, which states that personal data shall be "adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed."

This means that in a specific processing operation, only relevant personal data that is strictly necessary to fulfill the purpose for which they are processed may be processed. The processing must be appropriate and proportional to the purpose it is directed towards. Relevance in the processing of data must occur both at the time of data collection and in the subsequent processing of the same.

In accordance with the above, the processing of excessive data must be restricted or the data must be deleted.

The application of the principle of data minimization in the context of video surveillance implies that images of public roads cannot be captured, since the processing of images in public places, unless government authorization is obtained, can only be carried out by the Security Forces and Bodies.

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In some cases, for the protection of private spaces where cameras have been installed on facades or indoors, it may be necessary to record a portion of the public thoroughfare to ensure security purposes.

That is to say, cameras and video cameras installed for security purposes may not capture images of the public thoroughfare unless it is essential for that purpose or it is impossible to avoid it due to their location. In such extraordinary cases, the cameras may only capture the minimum portion necessary to preserve the safety of individuals and property, as well as their facilities.

Under no circumstances will the use of surveillance practices beyond the environment subject to the installation be permitted, particularly not affecting surrounding public spaces, adjacent buildings, and vehicles other than those accessing the monitored space.

Installed cameras may not capture images of third-party private spaces and/or public spaces without a duly justified cause, nor may they affect the privacy of passersby freely moving through the area.

Therefore, the placement of cameras directed towards the private property of neighbors with the intent to intimidate them or affect their private sphere without justified cause is not permitted.

Images may not be captured or recorded in spaces owned by third parties without the consent of their owners or, where applicable, of the individuals present in those spaces.

Furthermore, it is disproportionate to capture images in private spaces, such as changing rooms, lockers, or rest areas for workers.

IV

Obligations regarding video surveillance

In accordance with the above, the processing of images through a video surveillance system, to be compliant with current regulations, must meet the following requirements:

1.- Individuals or legal entities, public or private, may establish a video surveillance system for the

purpose of preserving the safety of individuals and property, as well as their facilities.

It must be assessed whether the intended purpose can be achieved in a less intrusive manner for the rights and freedoms of citizens. Personal data may only be processed if the purpose of the processing cannot reasonably be achieved by other means, considering Recital 39 of the GDPR.

2.- The images obtained may not be used for a subsequent purpose incompatible with the one that motivated the installation of the video surveillance system.

3.- The duty to inform the affected parties as provided in Articles 12 and 13 of the GDPR, and Article 22 of the LOPDGDD, must be fulfilled as previously indicated.

4.- The processing of images through the installation of camera or video camera systems must be lawful and comply with the principles of proportionality and data minimization, as previously indicated.

5.- The images may be retained for a maximum period of one month, except in cases where they must be retained to prove the commission of acts that threaten the integrity of individuals, property, or facilities.

In this second case, they must be made available to the competent authority within a maximum period of 72 hours from the time knowledge of the existence of the recording is obtained.

6.- The responsible party must maintain a record of activities of the processing carried out under their responsibility, which includes the information referred to in Article 30.1 of the GDPR.

7.- The responsible party must conduct a risk analysis or, where applicable, a data protection impact assessment, to detect the risks arising from the implementation of the video surveillance system, evaluate them, and, where applicable, adopt appropriate security measures.

8.- When a security breach occurs that affects the processing of cameras for security purposes, provided there is a risk to the rights and freedoms of individuals, it must be reported to the AEPD within a maximum period of 72 hours.

A security breach is understood as the destruction, loss, or accidental or unlawful alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data.

9.- When the system is connected to an alarm center, it may only be installed by a private security company that meets the requirements set forth in Article 5 of Law 5/2014 on Private Security, of April 4.

The Spanish Data Protection Agency provides access through its website [<https://www.aepd.es>] to:

- legislation on personal data protection, including the GDPR and the LOPDGDD (section "Reports and Resolutions" / "Regulations"),
- the Guide on the use of video cameras for security and other purposes,
- the Guide for compliance with the duty to inform (both available in the section "Guides and Tools").

It is also of interest, in the case of carrying out low-risk data processing, the free tool Facilita (in the section "Guides and Tools"), which, through specific questions, allows assessing the situation of the responsible party regarding the personal data processing they carry out, and, where applicable, generating various reports.

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documents, informative and contractual clauses, as well as an annex with minimum indicative security measures.

V

Administrative Infraction

In accordance with the proven facts established during the sanctioning procedure, it is considered that the aforementioned facts violate the provisions established in Articles 5.1.c) and 13 of the GDPR, thus constituting two infractions classified under Article 83.5 of the GDPR, which states the following:

"Infractions of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of a company, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher

amount:

- a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9;
- b) the rights of data subjects under Articles 12 to 22; (...)"

For the purposes of the statute of limitations for infractions, the infractions indicated in the previous paragraph are considered very serious in accordance with Article 72.1 of the LOPDGDD, which establishes that:

"Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following infractions are considered very serious and shall prescribe after three years, which involve a substantial violation of the articles mentioned therein and, in particular, the following:

a) The processing of personal data violating the principles and guarantees established in Article 5 of Regulation (EU) 2016/679.

b) The processing of personal data without any of the conditions for lawful processing established in Article 6 of Regulation (EU) 2016/679.

(...)

h) The omission of the duty to inform the affected party about the processing of their personal data in accordance with the provisions of Articles 13 and 14 of Regulation (EU) 2016/679 and Article 12 of this Organic Law."

VI

Sanction

Article 83 "General conditions for the imposition of administrative fines" of the GDPR in its paragraph 7 establishes:

"Without prejudice to the corrective powers of the supervisory authorities under Article 58, paragraph 2, each Member State may establish rules on whether and to what extent administrative fines may be imposed on authorities and public bodies established in that Member State."

Likewise, Article 77 "Regime applicable to certain categories of controllers or processors" of the LOPDGDD provides the following:

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"1. The regime established in this article shall apply to the processing for which they are responsible or processors:

c) The General Administration of the State, the Administrations of the autonomous communities, and the entities that comprise the Local Administration.

2. When the controllers or processors listed in paragraph 1 commit any of the infractions referred to in Articles 72 to 74 of this Organic Law, the competent data protection authority shall issue a resolution sanctioning them with a warning. The resolution shall also establish the measures that should be adopted to cease the conduct or correct the effects of the infraction that has been committed.

The resolution shall be notified to the controller or processor, to the body to which it is hierarchically dependent, if applicable, and to the affected parties who had the status of interested parties, if applicable.

5. The actions taken and the resolutions issued under this article shall be communicated to the Ombudsman or, where applicable, to the analogous institutions of the autonomous communities."

For all these reasons, it is considered that the corresponding sanction is a warning.

VII

Measures

The text of the resolution establishes what the committed infractions have been and the facts that have led to the violation of data protection regulations, from which it is clearly inferred what measures should be adopted, without prejudice to the fact that the type of procedures, mechanisms, or specific instruments for implementing them correspond to the sanctioned party, as it is the controller who fully knows their organization and must decide, based on proactive responsibility and a risk-based

approach, how to comply with the GDPR and the LOPDGDD.

It is warned that failure to comply with the order to adopt measures imposed by this agency in the sanctioning resolution may be considered an administrative infraction in accordance with the provisions of the GDPR, classified as an infraction in its Articles 83.5 and 83.6, which may lead to the initiation of further administrative sanctioning proceedings.

VIII

Conclusion

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established, the Director of the Spanish Agency for Data Protection RESOLVES:

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FIRST: TO DIRECT the TOWN HALL OF OLIVENZA, with NIF P0609500D, for the violations of Article 5.1.c) of the GDPR and Article 13 of the GDPR, classified under Article 83.5 of the GDPR, a warning sanction.

SECOND: TO ORDER the TOWN HALL OF OLIVENZA to, pursuant to Article 58.2.d) of the GDPR, within one month, demonstrate compliance with the following measures:

- The removal of the camera or video camera system from the current location or its reorientation, in such a way that the viewing of the images clearly shows that areas of the public road are not captured.
- The placement of an informational device in the monitored areas or to complete the information provided therein (it must identify, at a minimum, the existence of processing, the identity of the controller, and the possibility of exercising the rights provided in those provisions), placing this device in a sufficiently visible location, both in open and closed spaces.
- That it maintains the information referred to in Articles 13 and 14 of the GDPR available to those affected.

THIRD: TO NOTIFY this resolution to the TOWN HALL OF OLIVENZA.

FOURTH: TO COMMUNICATE this resolution to the Ombudsman, in accordance with the provisions of Article 77.5 of the LOPDGDD.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file an administrative contentious appeal. If this is the case, the interested party must formally communicate this fact through a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the administrative contentious appeal. If the Agency is not aware of the filing of the administrative contentious appeal within two months from the day following the notification of this resolution, it would consider the provisional suspension to be concluded.

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